

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE K.P.JYOTHINDRANATH

TUESDAY ,THE 30TH DAY OF OCTOBER 2018 / 8TH KARTHIKA, 1940

CRP.No. 513 of 2018

AGAINST THE ORDER/JUDGMENT IN EA 3/2017 of ADDITIONAL DISTRICT COURT,
IRINJALAKUDA DATED 18-06-2018

AGAINST THE ORDER/JUDGMENT IN OPELC 28/2015 of MUNSIFF COURT,
CHALAKUDY

PETITIONER/IST RESPONDENT/IST RESPONDENT:

RAVI NAMBOOTHIRI

S/O KRISHNAN NAMBOOTHIRI ,KADAKKAVATTATH MANA ,ERAYAMKUDI
DESOM ,KALLUR THEKKUMURY VILLAGE ,CHALAKUDY
TALUK ,THRISSUR DISTRICT.

BY ADV. SRI.RAJIT

RESPONDENTS/APPELLANTS/RESPONDENTS 2 TO 4/PETITIONER & RESPONDENTS 2
TO 4:

- 1 K.A.BAIJU
S/O.KUDILINGAL ANTONY ,KUMBIDI ,ALTHUR VILLAGE ,CHALAKUDY
TALUK ,THRISSUR DISTRICT.680 101
- 2 KRISHNANKUTTY MARAR
S/O.KIZHEKKE MARATH PRABHAKARA MARAR ,KALLUR ,THEKKUMURY
VILLAGE ,ANNAMANADA DESOM ,CHALAKUDY TALUK ,THRISSUR
DISTRICT.
- 3 ABDUL SATHAR
S/O AYYARIL IBRAHIMKUTTY ,ANNAMANADA DESOM ,KALLUR
THEKKUMURY VILLAGE ,CHALAKUDY TALUK.680 101
- 4 SHAJU
S/O VITHAYATHIL KURYAPPAN ,ANNAMANADA DESOM ,KALLUR
THEKKUMURY VILAGE ,CHALAKUDY TALUK.680 101

BY ADVS.

SRI.P.C.SASIDHARAN

SRI.P.E.SAJAL

THIS CIVIL REVISION PETITION HAVING BEEN FINALLY HEARD ON 18.07.2018,
THE COURT ON 30.10.2018 PASSED THE FOLLOWING:

(C.R.)

O R D E R

The five-judge Constitution Bench of the Hon'ble Supreme Court expressed anxiety at the increasing criminalization of politics; but left the matter to be addressed by the Parliament. It is also observed that time has come that the Parliament must make law to ensure that persons facing serious criminal cases do not enter into the political stream. While issuing directions, the Hon'ble Apex Court directed that each contesting candidate shall fill up the form as provided by the Election Commission and the form must contain all the particulars as required therein. The question to be considered in this case is that if there is non-compliance by not including the fact and details of a criminal case where the sentence of fine is only Rs.200/-, what will be the consequence.

2. The petitioner herein is the elected candidate of Ward No.5 of Annamanada Grama Panchayath in the election held on 5.11.2015. It can be further seen that the petitioner as well as the defeated first respondent herein have obtained equal votes and the petitioner herein was declared as elected by way of lot. The first respondent

filed the election petition alleging various grounds. One of the grounds highlighted is that the petitioner herein was an accused in a criminal offence and was convicted and that fact was suppressed in Form 2A declaration. After trial, the said petition was dismissed. The defeated candidate who is the first respondent herein challenged the order of the trial court in an appeal. The appeal was allowed. Hence this civil revision petition.

3. The appeal was allowed and the election of the petitioner herein from Ward No.5 of Annamanada Grama Panchayath was declared as void on the ground that the first respondent has committed corrupt practice by suppressing the details of the criminal case from his nomination paper.

4. It is an admitted fact that against the petitioner herein there was a conviction in a criminal case and a fine of Rs.200/- was imposed as evident from the certified copy of judgment in criminal appeal No.389/2010 on the files of the Sessions Court, Thrissur, which is available as Ext.A9 in the lower court records. The offence for which the conviction was entered into is under Section 38 r/w. Section 52 of the Kerala Police Act. To be more specific, it was for

disobeying the police orders and conducting a dharna in front of the panchayath.

5. The Constitution of India, in Article 243F states as follows:

243F. Disqualifications for membership.- (1) A person shall be disqualified for being chosen as, and for being, a member of a Panchayat -

(a) if he is so disqualified by or under any law for the time being in force for the purposes of elections to the Legislature of the State concerned:

Provided that no person shall be disqualified on the ground that he is less than twenty-five years of age, if he has attained the age of twenty-one years;

(b) if he is so disqualified by or under any law made by the Legislature of the State.

(2) If any question arises as to whether a member of a Panchayat has become subject to any of the disqualifications mentioned in clause (1), the question shall be referred for the decision of such authority and in such manner as the Legislature of a State may, by law, provide.

6. Thus, it can be seen that the provisions of disqualification in the Representation of the People Act, 1950 will be applicable in the case of a panchayat member. Moreover, he will be also disqualified by or under any law made by the Legislature of the State in respect of the election of panchayat.

7. In this case, as per the Kerala Panchayat Raj Act, 1994 (for short 'the Act') the case of the respondent/petitioner before the concerned court was that by Section 52 (1A), every candidate is

bound to submit along with the nomination, the details regarding the educational qualification, criminal cases in which he is involved at the time of submission of nomination, property owned by him and other members of his families, liabilities including arrears due from him to any public sector undertaking or government or local self government institutions and whether disqualified for defection under the Kerala Local Authorities (Prohibition of Defection) Act, 1999, in the form and manner as may be prescribed.

8. In this particular case, the question is whether there is suppression of criminal cases in which he was convicted at the time of nomination. Thus, the finding of the appellate court is that prima facie there is suppression of details regarding criminal cases as required under Section 52 (1A) of the Act. The main aspect raised before this court seems to be whether a mere non-mentioning of a conviction where only a fine amount of Rs.200/- was imposed, can be a ground to disqualify the person under Section 52(1A) of the Act. Section 52 (1A) was inserted by Act 30 of 2005 with effect from 22.8.2005.

9. The background of introducing such an amendment or

incorporating such a provision is also relevant to be considered. In **Union of India v. Association For Democratic Reforms and Anr. [(2002) 5 SCC 294]** in paragraph 46 (4) the Hon'ble Apex Court held as follows:

To maintain the purity of election and in particular to bring transparency in the process of election, the Commission can ask the candidates about the expenditure incurred by the political parties and this transparency in the process of election would include transparency of a candidate who seeks election or re-election. In a democracy, the electoral process has a strategic role. The little man of this country would have basic elementary right to know full particulars of a candidate who is to represent him in Parliament where laws to bind his liberty and property may be enacted.

After holding so in paragraph 48 it is held as follows:

48. The Election Commission is directed to call for information on affidavit by issuing necessary order in exercise of its power under Article 324 of the Constitution of India from each candidate seeking election to Parliament or a State Legislature as a necessary part of his nomination paper furnishing therein, information on the following aspects in relation to his/her candidature:-

(1) Whether the candidate is convicted/ acquitted/discharged of any criminal offence in the past - if any, whether he is punished with imprisonment or fine.

(2) Prior to six months of filing of nomination, whether the candidate is accused in any pending case, of any offence punishable with imprisonment for two years or more, and in which charge is framed or cognizance is taken by the Court of law. If so, the details thereof.

(3) The assets (immovable, movable, bank balances etc.) of a candidate and of his/her spouse and that of dependants.

(4) Liabilities, if any, particularly whether there are any overdues of any public financial institution or Government dues.

(5) The educational qualifications of the candidate.

There an amendment was brought to Section 33 of the Representation of the People Act.

10. Thereafter in **People's Union For Civil Liberties (PUCL) and Anr. v. Union of India [(2003) 4 SCC 399]** the Apex Court considered the amendment brought by Representation of the People (Third Amendment) Act, 2002 i.e. Section 33-A and 33-B of the said Act. Therein, the three Judges Bench delivered their separate judgment and Justice M.B. Shah held in paragraph 78 and 79 as follows:

78. What emerges from the above discussion can be summarised thus:-

(A) The legislature can removed on the basis of a decision rendered by a competent Court thereby rendering that decision

ineffective but the legislature has no power to ask the instrumentalities of the State to disobey or disregard the decisions given by the Court. A declaration that an order made by a Court of law is void is normally a part of the judicial function. Legislature cannot declare that decision rendered by the Court is not binding or is of no effect. It is true that legislature is entitled to change the law with retrospective effect which forms the basis of a judicial decision. This exercise of power is subject to constitutional provision, therefore, it cannot enact a law which is violative of fundamental right.

(B) Section 33-B which provides that notwithstanding anything contained in the judgment of any Court or directions issued by the Election Commission, no candidate shall be liable to disclose or furnish any such information in respect of his election which is not required to be disclosed or furnished under the Act or the Rules made thereunder, is on the face of it beyond the legislative competence, as this Court has held that the voter has a fundamental right under Article 19(1)(a) to know the antecedents of a candidate for various reasons recorded in the earlier judgment as well as in this judgment.

The Amended Act does not wholly cover the directions issued by this Court. On the contrary, it provides that candidate would not be bound to furnish certain information as directed by this Court.

(C) The judgment rendered by this Court in Association for Democratic Reforms has attained finality, therefore, there is no question of interpreting constitutional provision which calls for reference under Article 145(3).

(D) The contention that as there is no specific fundamental right conferred on a voter by any statutory provision to know the antecedents of a candidate, the directions given by this Court are against the statutory provisions is, on the face of it, without any substance. In an election petition challenging the validity of an election of a particular candidate, the statutory provisions would govern respective rights of the parties. However, voters' fundamental right to know antecedents of a candidate is independent of statutory rights under the election law. A voter is first citizen of this country and apart from statutory rights, he is having fundamental rights conferred by the Constitution. Members of a democratic society should be sufficiently informed so that they may cast their votes intelligently in favour of persons who are to govern them. Right to vote would be meaningless unless the citizens are well informed about the antecedents of a candidate. There can be little doubt that exposure to public gaze and scrutiny is one of the surest means to cleanse our democratic governing system and to have competent legislatures.

(E) It is established that fundamental rights themselves have no fixed content, most of them are empty vessels into which each generation must pour its content in the light of its experience. The attempt of the Court should be to expand the reach and ambit of the fundamental rights by process of judicial interpretation. During last more than half a decade, it has been so done by this Court consistently. There cannot be any distinction between the fundamental rights mentioned in Chapter-III of the Constitution

and the declaration of such rights on the basis of the judgments rendered by this Court.

79. In the result, Section 33-B of the Amended Act is held to be illegal, null and void. However, this judgment would not have any retrospective effect but would be prospective. Writ petitions stand disposed of accordingly.

P. Venkatarama Reddi, J. held as follows:- The width and amplitude of the right to information about the candidates contesting elections to Parliament or the State Legislature in the context of the citizen's right to vote broadly falls for consideration in these writ petitions under Article 32 of the Constitution. While I respectfully agree with the conclusion that Section 33-B of the Representation of the People Act, 1951 does not pass the test of constitutionality, I have come across a limited area of disagreement on certain aspects, especially pertaining to the extent of disclosures that could be insisted upon by the Court in the light of legislation on the subject. Moreover, the importance and intricacies of the subject-matter and the virgin ground trodden by this Court in *Union of India v. Assn. For Democratic Reforms* to bring the right to information of the voter within the sweep of Article 19(1)(a) has impelled me to elucidate and clarify certain crucial aspects. Hence, this separate opinion.

Justice P. Venkatarama Reddi further concluded in paragraph 123 of the said decision as follows:

123. Finally, the summary of my conclusions:

(1) Securing information on the basic details concerning the candidates contesting for elections to the Parliament or State

Legislature promotes freedom of expression and therefore the right to information forms an integral part of Article 19(1)(a). This right to information is, however, qualitatively different from the right to get information about public affairs or the right to receive information through the Press and electronic media, though, to a certain extent, there may be overlapping.

(2) The right to vote at the elections to the House of the People or Legislative Assembly is a constitutional right but not merely a statutory right; freedom of voting as distinct from right to vote is a facet of the fundamental right enshrined in Article 19(1)(a). The casting of vote in favour of one or the other candidate marks the accomplishment of freedom of expression of the voter.

(3) The directives given by this Court in *Union of India vs. Association for Democratic Reforms* were intended to operate only till the law was made by the Legislature and in that sense 'pro tempore' in nature. Once legislation is made, the Court has to make an independent assessment in order to evaluate whether the items of information statutorily ordained are reasonably adequate to secure the right of information available to the voter/citizen. In embarking on this exercise, the points of disclosure indicated by this Court, even if they be tentative or ad hoc in nature, should be given due weight and substantial departure therefrom cannot be countenanced.

(4) The Court has to take a holistic view and adopt a balanced approach in examining the legislation providing for right to information and laying down the parameters of that right.

(5) Section 33-B inserted by the Representation of People (3rd

Amendment) Act, 2002 does not pass the test of constitutionality, firstly, for the reason that it imposes blanket ban on dissemination of information other than that spelt out in the enactment irrespective of the need of the hour and the future exigencies and expedients and secondly for the reason that the ban operates despite the fact that the disclosure of information now provided for is deficient and inadequate.

(6) The right to information provided for by the Parliament under Section 33-A in regard to the pending criminal cases and past involvement in such cases is reasonably adequate to safeguard the right to information vested in the voter/citizen. However, there is no good reason for excluding the pending cases in which cognizance has been taken by Court from the ambit of disclosure.

(7) The provision made in Section 75-A regarding declaration of assets and liabilities of the elected candidates to the Speaker or the Chairman of the House has failed to effectuate the right to information and the freedom of expression of the voters/citizens. Having accepted the need to insist on disclosure of assets and liabilities of the elected candidate together with those of the spouse or dependent children, Parliament ought to have made a provision for furnishing this information at the time of filing the nomination. Failure to do so has resulted in the violation of guarantee under Article 19(1)(a).

(8) The failure to provide for disclosure of educational qualification does not, in practical terms, infringe the freedom of expression.

(9) The Election Commission has to issue revised instructions

to ensure implementation of Section 33-A subject to what is laid down in this judgment regarding the cases in which cognizance has been taken. The Election Commission's orders related to disclosure of assets and liabilities will still hold good and continue to be operative. However, direction 4 of para 14 insofar as verification of assets and liabilities by means of summary enquiry and rejection of nomination paper on the ground of furnishing wrong information or suppressing material information should not be enforced.

11. Thus, the decision of Justice D.M. Dharmadhikari became most decisive one, which states as follows in paragraphs 124 to 132:

DHARMADHIKARI, J.- I have carefully gone through the well considered separate opinions of Brothers M.B. Shah and P.V. Reddi, JJ. Both the learned judges have come to a common conclusion that Section 33-B inserted in the Representation of People Act, 1951 by Amendment Ordinance 4 of 2002, which on repeal is succeeded by 3rd Amendment Act of 2002, is liable to be declared invalid being violative of Article 19(1)(a) of the Constitution.

126. I am in respectful agreement with the above conclusion reached in common by both the learned brothers. I would, however, like to supplement the above conclusion.

127. The reports of the advisory Commission set up one after the other by the Government to which a reference has been made by Brother Shah, J., highlight the present political scenario where money power and muscle power have substantially polluted and perverted the democratic processes in India. To control the ill-effects of money-power and muscle-power the Commissions recommend that election system should be overhauled and

drastically changed lest democracy would become a teasing illusion to common citizens of this country. Not only a half-hearted attempt in the direction of reform of the election system is to be taken, as has been done by the present legislation by amending some provisions of the Act here and there, but a much improved election system is required to be evolved to make the election process both transparent and accountable so that influence of tainted money and physical force of criminals do not make democracy a farce – the citizen's fundamental “right of information” should be recognised and fully effectuated. This freedom of a citizen to participate and choose a candidate at an election is distinct from exercise of his right as a voter which is to be regulated by statutory law on the election like the R.P Act.

128. Making of law for election reform is undoubtedly a subject exclusively of legislature. Based on the decision of this Court in the case of Association for Democratic Reforms and the directions made therein to the Election Commission, the Amendment Act under consideration has made an attempt to fill the void in law but the void has not been filled fully and does not satisfy the requirements for exercise of fundamental freedom of the citizen to participate in election as a well-informed voter.

129. Democracy based on “free and fair elections” is considered as basic feature of the Constitution in the case of Kesavananda Bharati. Lack of adequate legislative will to fill the vacuum in law for reforming the election process in accordance with the law declared by this Court in the case of Association for Democratic Reforms obligates this Court as an important organ in

constitutional process to intervene.

130. In my opinion, this Court is obliged by the Constitution to intervene because the legislative field, even after the passing of the Ordinance and the Amendment Act, leaves a vacuum. This Court in the case of Association for Democratic Reforms has determined the ambit of fundamental “right of information” to a voter. The law, as it stands today after amendment, is deficient in ensuring “free and fair elections”. This Court has, therefore, found it necessary to strike down Section 33-B of the Amendment Act so as to revive the law declared by this Court in the case of Association for Democratic Reforms.

131. With these words, I agree with Conclusions (A) to (E) in the opinion of Brother Shah J. and Conclusions (1), (2), (4), (5), (6), (7) and (9) in the opinion of Brother P.V. Reddi, J.

132. With utmost respect, I am unable to agree with Conclusions (3) and (8) in the opinion of Brother P.V. Reddi, J., as on those aspects, I have expressed my respectful agreement with Brother Shah J.

12. Section 33-A of the Representation of People Act, 1951 states as follows:

33A. Right to information.-(1) A candidate shall, apart from any information which he is required to furnish, under this Act or the rules made thereunder, in his nomination paper delivered under sub-section (1) of Section 33, also furnish the information as to whether-

(i) he is accused of any offence punishable with imprisonment for two years or more in a pending case in which a charge has been framed by the court of competent jurisdiction;

(ii) he has been convicted of an offence [other than any offence referred to in sub-section (1) or sub-section (2), or covered in sub-section (3), of Section 8] and sentenced to imprisonment for one year or more.

(2) The candidate or his proposer, as the case may be, shall, at the time of delivering to the returning officer the nomination paper under sub-section (1) of Section 33, also deliver to him an affidavit sworn by the candidate in a prescribed form verifying the information specified in sub-section (1).

(3) The returning officer shall, as soon as may be after the furnishing of information to him under sub-section (1), display the aforesaid information by affixing a copy of the affidavit, delivered under sub-section (2), at a conspicuous place at his office for the information of the electors relating to a constituency for which the nomination paper is delivered.

There the relevant portion in respect of this case is that the petitioner has to furnish the information whether he has been convicted of an offence other than any offence referred to in sub-section (1) or sub-section (2), or covered in sub-section (3), of section 8 and sentenced to imprisonment for one year or more. In respect of the same the relevant form is Form 2D Part II. There he is bound to reveal imprisonment where he is sentenced to imprisonment for one year or more. Now, the pertinent question before this court is regarding, when the Constitution of India, the

mother of all laws, as per Article 243 F, if disqualifications for membership in a panchayat is equated with the disqualification of a person to contest in an election to the Legislature of that State concerned but there also, as per 243F (b), said that if he will be disqualified by or under any law made by the Legislature of the State and now as Section 52 (1A) of the Act stands he is bound to disclose a conviction for an offence where the penalty is only Rs.200/-. As per the decision in **People's Union For Civil Liberties (PUCL)**'s case (supra), while concluding Justice Venkatarama Reddi held in paragraph 123 (6) that the right to information provided for by Parliament under Section 33-A in regard to the pending criminal cases and past involvement in such cases is reasonably adequate to safeguard the right to information vested in the voter/citizen. However, there is no good reason for excluding the pending cases in which cognizance has been taken by the Court from the ambit of disclosure. Justice D.M. Dharmadhikari agreed with this opinion. That is evident in paragraph 131 of the said judgment.

131. With the words, I agree with Conclusions (A) to (E) in the opinion of Brother Shah, J. and Conclusions (1), (2), (4), (5), (6), (7) and (9) in the opinion of Brother P.V. Reddi, J.

13. Thus, what comes out is that as per the decision in Union of India v. Association For Democratic Reforms and Anr. (supra) the directions given in paragraph 48 (1) regarding the information to be furnished in respect of whether the candidate is convicted/acquitted/discharged in any criminal offence in the past - if any, whether he is punished with imprisonment or fine, a legislative amendment brought to the Representation of the People Act, 1951 and Section 33-A is now therein. Similarly an amendment brought to the Kerala Panchayat Raj Act. Thus, as per Section 52 (IA), information as prescribed has to be furnished. There on, using the power of delegated legislation, form is prescribed and as per the form, non-disclosure of fine of Rs.200/- can be considered as suppression of material fact, which will disqualify the candidate.

14. Thus, what comes out is that as per Section 33A of the Representation of the People Act, 1950 it is categorically stated as to what extent or relating to what kind of case and sentences, information has to be furnished. As per the Rule 4A under the Conduct of Elections Rules, 1961 the candidate or his proposer, as the case may be, shall, at the time of delivering to the returning

officer, the nomination paper under sub-section (1) of section 33 of the Act, also deliver to him an affidavit sworn by the candidate before a Magistrate of the first class or a Notary in Form 26. In Form 26. 2 it has to be stated that he has not been convicted of an offence and sentenced to imprisonment for one year or more and if convicted and punished he shall furnish the details of the same. Then, what comes out is that, to be elected to the parliament or legislative assembly, the candidate need furnish only the details regarding the sentences imposed upon him where the imprisonment is for one year or more. To contest to the post of a member of the legislative assembly or the parliament to satisfy the right to information of the voters, a candidate need furnish only the details as detailed above.

15. Now, we can go to the requirements as per the Kerala Panchayat Raj Act. The provision in par with Section 33 of the Representation of People Act is Section 52 (1A). Similarly, the relevant Rule is Rule 6 and as per the said Rule it states as follows:

6. Nomination of candidates.- (1) A candidate shall be nominated by means of a nomination paper in Form No.2 and on an application in that behalf of an elector in the electoral roll of any constituency of concerned Panchayat, the Returning Officer shall

provide him Form No. 2 free of cost.

(2) Every candidate shall make and subscribe an oath or affirmation before the Returning Officer or the person authorised by the State Election Commission in the Form specified in the First Schedule of the Act.

(2a) Every candidate shall submit before the Returning officer, the details in form No. 2A along with the nomination paper.

(3) The Returning Officer shall, immediately on receipt of the nomination paper, number them serially in the order of their presentation and shall note the date and time of its presentation in each nomination paper and shall issue a receipt attached to Form No.2.

16. There it can be seen that alongwith the nomination paper the details in Form No.2A shall be accompanied. As per Form No.2A the details should be furnished under 1 (b) are:

1. The following criminal cases are pending against me for trial before the court/I have been convicted by the court in criminal cases.

a. x x x x

(b) Those in which punished

(i) Case number

(ii) Name and place of court

(iii) Description of the offence for which punishment was awarded

(iv) Sections of the concerned Act under which punishment was awarded

(v) Punishment awarded (period of imprisonment/quantum of fine imposed) etc.

(vi) Date of sentence

(vii) Details regarding appeal, revision etc. filed against the sentence.

Thus, what comes out or the paradoxical situation is that when a person is contesting to the panchayat he has to furnish all the details

regarding conviction by a court in criminal cases irrespective of the sentences imposed. In the case of contest to the legislative assembly or to parliament need only furnish details as detailed above i.e. details of the cases where he was sentenced for one year or more, whereas in the case of a panchayat, a candidate has to furnish all the details of conviction in criminal case irrespective of the gravity or sentences imposed.

17. Now, in this case it is a fact that the petitioner was convicted and sentenced to pay a fine of Rs.200/- which was not revealed in the prescribed form as per the statute and rules. When a candidate can contest to the parliament or to the assembly, as per the provisions of the Representation of the People Act and Rules, he is entitled not to reveal the punishment upto one year. But to contest in a panchayat, all the convictions and sentences including fine has to be revealed or included in the form. At this juncture it is also relevant to note that the amendment and rules and form, framed are in tune with the fundamental right of the voters declared by the Hon'ble Apex Court. The only doubt is that the requirement is reasonable and practical.

18. It is to be remembered that in respect of petty offences there is a special provision to send special summons to a person accused under Section 206 of the Code of Criminal Procedure, 1973. The special summons form is as follows:

FORM NO. 30.
SPECIAL SUMMONS TO A PERSON ACCUSED OF A PETTY OFFENCE
 (See section 206)

To.....(Name of the accused)

of.....(address)

WHEREAS your attendance is necessary to answer a charge of a petty offence.....(state shortly the offence charged), you are hereby required to appear in person (or by pleader) before (Magistrate) of..... on the..... day of 20..... or if you desire to plead guilty to the charge without appearing before the Magistrate, to transmit before the aforesaid date the plea of guilty in writing and the sum of rupees as fine, or if you desire to appear by pleader and to plead guilty through such pleader, to authorise such pleader in writing to make such a plea of guilty on your behalf and to pay the fine through such pleader. Herein fail not.

Dated, this day of..... 20.....

(Seal of the court)

(Signature)

(Note-The amount of fine specified in this summons shall not exceed one hundred rupees.)

19. Thus, it can be seen that as per the said Form, if the party is pleading guilty the accused will only have a short statement regarding the offence charged as evident from the form. If he pleaded guilty and if the summons form does not contain the required facts, the accused may not have the details as required to be furnished in Form 2A. But the power to legislate law in respect of election to panchayat is on the assembly. Surely, the rules and forms

are formulated by using the power under the delegated legislation. But as already highlighted, it is only a paradox that the legislatures who need not reveal or reveal details as highlighted above in the nomination form legislated a law, wherein to contest in a panchayat or municipal election has to reveal each and every conviction and sentence imposed. This is a matter to be looked into by the government. But as the law now stands, when admittedly a conviction and sentence is not divulged or entered in Form 2A in the nomination form by the petitioner herein and on that basis the appeal was allowed, this court cannot find fault with the impugned judgment. On this technical aspect even though the fine was only for Rs.200/- and the conviction was for an agitation in front of the panchayat, considering the fact that this court cannot abridge or expand the ambit of legislation made by the competent body, in tune with the 'fundamental right' of voters declared by the Hon'ble Apex Court it can be only held that there is no merit in this civil revision petition.

20. Thus what comes out is that when there is a legislative mandate in the light of the decision of the Hon'ble Apex Court highlighting the constitutional right of the voter, in respect of right to

know, about the antecedents of the candidates, it cannot be diluted or abridged or substituted by this court. At the very same time, it is to be remembered that when an amendment was brought in, in tune with the direction of the Hon'ble Apex Court in **Union of India v. Association For Democratic Reforms and Anr. [(2002) 5 SCC 294]** (supra) to Section 33 of the Representation of the People Act, there it was only necessary to furnish convictions where sentence is only one year or more, which was considered by the Hon'ble Apex Court as reasonably adequate. The State law mandates to declare all the convictions and sentences in the form prescribed under Section 52 (1A) of the Kerala Panchayath Raj Act. In this case it is relevant to note that both the candidates got equal votes. In such a situation the right of the people/voters to know about the conviction and sentences of the candidate attains more relevance. When there is non-compliance of a legislative mandate, brought in the light of a Supreme Court decision where the fundamental right of the voter to know about the candidates' antecedence highlighted, it can be only said that there is non-compliance of the required disclosure as per Form 2A referred above. The corollary is that there is nothing to

interfere with the judgment of the court below and there is no merit in this civil revision petition. Accordingly, it is dismissed.

Sd/-

K . P . JYOTHINDRANATH

SHG

JUDGE